

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF KENTUCKY
LOUISVILLE DIVISION

UNITED STATES OF AMERICA,

Plaintiff,

v.

LUKE JOHN FLINT, a/k/a
“coronavaccine.center”;
“coronavaccine.today”;
“coronatesting.site”;
“coronatesting.center”;
“coronavaccine.shop”;
“coronavaccine.club”; and
“covid19vaccine.center”

Defendant.

Case No. 3:20CV-489-CHB

**COMPLAINT FOR PRELIMINARY INJUNCTION
AND PERMANENT INJUNCTION**

For its Complaint against Defendant Luke John Flint a/k/a “coronavaccine.center,” “coronavaccine.today,” “coronatesting.site,” “coronatesting.center,” “coronavaccine.shop,” “coronavaccine.club,” and “covid19vaccine.center” (“Defendant”), the United States of America (“United States”) alleges as follows:

INTRODUCTION

1. Defendant is engaging in and facilitating or is about to engage in and facilitate a wire fraud scheme exploiting the current COVID-19 pandemic.
2. On or about March 13, 2020, Defendant registered the following domain names through GoDaddy.com: coronavaccine.center, coronavaccine.today, coronatesting.site, coronatesting.center, coronavaccine.shop, and coronavaccine.club. On or about March 28, 2020,

Defendant registered the following domain name through GoDaddy.com: covid19vaccine.center. GoDaddy.com is headquartered in Scottsdale, Arizona and incorporated in Delaware.

3. Defendant created a website with the domain name coronavaccine.center, which promotes and purports to allow consumers to pre-order a COVID-19 vaccine. When a consumer enters the Defendant's domain names coronavaccine.today, coronatesting.site, coronatesting.center, coronavaccine.shop, coronavaccine.club, or covid19vaccine.center into a search engine, he or she is automatically directed to Defendant's coronavaccine.center website. The Corona Vaccine Center also has a Facebook page that includes a link to the website.

4. The website includes several false and misleading statements, including that Corona Vaccine Center offers "wholesale distribution online for Corona vaccine and related supplies."

5. The purpose of the website is to induce victims to pay Defendant and those working in concert with him for a non-existent vaccine for COVID-19 amid the global pandemic.

6. The United States seeks to prevent injury to victims of this fraudulent scheme by bringing this civil action under 18 U.S.C. § 1345 to enjoin Defendant's ongoing wire fraud in violation of 18 U.S.C. § 1343.

JURISDICTION AND VENUE

7. The Court has subject matter jurisdiction over this action under 18 U.S.C. § 1345 and 28 U.S.C. §§ 1331 and 1345.

8. Venue is proper in this district under 28 U.S.C. § 1391(b)(2) because a substantial part of the events or omissions giving rise to the claim occurred in this district.

THE PARTIES

9. Plaintiff is the United States of America.

10. Defendant Luke John Flint, acting alone or in concert with others, is the registrant of coronavaccine.center, coronavaccine.today, coronatesting.site, coronatesting.center, coronavaccine.shop, coronavaccine.club, and covid19vaccine.center, and has formulated, directed, controlled, had the authority to control, or participated in the acts and practices set forth in this Complaint. Defendant is a licensed commercial real estate broker in Louisville, Kentucky. Defendant is the incorporator of two Kentucky corporations, Lazarus Investments Corp. and Gotta Raise Cash Inc., and the manager of a Kentucky limited liability company, Hard as Steel LLC.

THE FRAUDULENT SCHEME

11. On May 27, 2020, HSI Special Agent Kay Brose, from a computer located in Louisville, Kentucky, visited the “coronavaccine.center” website. Special Agent Brose observed that the website offers “Coronavirus (COVID-19) Vaccine wholesale distribution online!” The main page of the website advertises “Corona Vaccine Center – Corona Testing Center – Corona Vaccine Club”.

12. The website includes several false and misleading statements. Specifically, the website offers “wholesale distribution online for Corona vaccine and related supplies.” It states that the “Corona Vaccine Center is a decentralized blockchain distribution ledger for direct placement of vaccine to be easily obtained by all customers who require cost effect [sic] direct access.”

13. The United States Food and Drug Administration (“FDA”) has confirmed that there is no vaccine for COVID-19. Moreover, the FDA’s Center for Biologics Evaluation and Research (“CBER”) regulates the development and research of new drugs. Defendant is not registered to develop or manufacture a vaccine for COVID-19.

14. If and when a vaccine is developed, in Kentucky, vaccines can only be distributed by a licensed medical professional or a licensed wholesaler. Defendant is not, nor has he ever been registered as a pharmacist or as associated with any wholesaler or manufacturer, nor is he licensed as a medical professional.

15. The website identifies the Corona Vaccine Center's address as 545 S Clay Street, Louisville, Kentucky. However, the Jefferson County PVA public records show this address is a vacant lot owned by Hard as Steel LLC, a Kentucky limited liability company managed by Defendant.

16. The purpose of the website is to induce victims to pay Defendant and those working in concert with him for a non-existent vaccine. The website falsely claims that it can provide a non-existent vaccine for COVID-19 amid the global pandemic. At a minimum, the website is accepting "pre-orders" for a vaccine that does not exist and it is unknown if and when a vaccine will exist. The website provides a link for customers to pay for "pre-orders" with Bitcoin, a form of cryptocurrency. When a consumer follows the link, it requests the consumer's name, shipping address, email, and mobile number. It also has a box to check to make a \$100 BTC payment and a link to send the payment.

17. Victims may suffer financial losses from the wire fraud scheme in which Defendant is engaged and facilitating.

18. Absent injunctive relief by this Court, Defendant's conduct will cause injury to victims.

COUNT ONE 18 U.S.C. § 1345

19. The United States re-alleges and incorporates paragraphs 1 through 18 as though fully set forth herein.

20. By reason of the conduct described herein, Defendant is about to violate, is violating, and/or has violated 18 U.S.C. § 1343 by engaging in and facilitating a scheme and artifice to defraud and obtain money or property by means of false or fraudulent representations with the intent to defraud, and, in so doing, is using or has used interstate or foreign wire communications.

21. Upon a showing that Defendant is committing or is about to commit a violation of 18 U.S.C. § 1343, the United States is entitled, under 18 U.S.C. § 1345, to seek a temporary restraining order, a preliminary injunction, and a permanent injunction restraining all future fraudulent conduct. The Court may also grant such other relief it deems just and proper to prevent a continuing and substantial injury to victims of the fraud scheme.

22. As a result of the foregoing, the Court should enjoin Defendant's conduct under 18 U.S.C. § 1345.

PRAYER FOR RELIEF

WHEREFORE, the United States requests judgment in its favor and against the Defendant, including the following relief:

A. That the Court issue the tendered Agreed Preliminary Injunction, pursuant to 18 U.S.C. § 1345, that Defendant, its agents, officers, and employees, and all other persons or entities in active concert or participation with them, are restrained from committing wire fraud, as defined by 18 U.S.C. § 1343, and from maintaining and doing business through the use of the domains coronavaccine.center, coronavaccine.today, coronatesting.site, coronatesting.center, coronavaccine.shop, coronavaccine.club, or covid19vaccine.center through any website or social media;

B. That the Court issue a permanent injunction, pursuant to 18 U.S.C. § 1345, on the same basis and to the same effect;

C. All such further relief as may be just and proper.

Respectfully submitted,
RUSSELL M. COLEMAN
United States Attorney

s/ Nicole S. Elver
William Campbell
Nicole S. Elver
Assistant United States Attorney
717 West Broadway
Louisville, KY 40202
Phone No. (502) 582-6893
Fax No. (502) 625-7110

Counsel for the United States

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

United States of America

(b) County of Residence of First Listed Plaintiff _____
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)

DEFENDANTS

Luke John Flint

County of Residence of First Listed Defendant _____
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☒ 1 U.S. Government Plaintiff
- ☐ 2 U.S. Government Defendant
- ☐ 3 Federal Question (U.S. Government Not a Party)
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- | | PTF | DEF | | PTF | DEF |
|---|----------------------------|---------------------------------------|---|----------------------------|----------------------------|
| Citizen of This State | ☐ 1 | ☒ 1 | Incorporated or Principal Place of Business In This State | ☐ 4 | ☐ 4 |
| Citizen of Another State | ☐ 2 | ☐ 2 | Incorporated and Principal Place of Business In Another State | ☐ 5 | ☐ 5 |
| Citizen or Subject of a Foreign Country | ☐ 3 | ☐ 3 | Foreign Nation | ☐ 6 | ☐ 6 |

IV. NATURE OF SUIT (Place an "X" in One Box Only)Click here for: [Nature of Suit Code Descriptions.](#)

CONTRACT	TORTS		FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	PERSONAL INJURY ☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability PERSONAL PROPERTY ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act IMMIGRATION ☐ 462 Naturalization Application ☐ 465 Other Immigration Actions	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 835 Patent - Abbreviated New Drug Application ☐ 840 Trademark SOCIAL SECURITY ☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) FEDERAL TAX SUITS ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 375 False Claims Act ☐ 376 Qui Tam (31 USC 3729(a)) ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 485 Telephone Consumer Protection Act ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☒ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement			

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District (specify) ☐ 6 Multidistrict Litigation - Transfer ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):
18 U.S.C. § 1345

Brief description of cause:

preliminary and permanent injunction under 18 USC § 1345 to restrain all violations of 18 USC § 1343

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P. DEMAND \$

CHECK YES only if demanded in complaint:

JURY DEMAND: ☐ Yes ☒ No**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE _____

DOCKET NUMBER _____

DATE

7/10/2020

SIGNATURE OF ATTORNEY OF RECORD

s/ Nicole S. Elver

FOR OFFICE USE ONLY

RECEIPT # _____

AMOUNT _____

APPLYING IFP _____

JUDGE _____

MAG. JUDGE _____

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Western District of Kentucky

United States of America

Plaintiff(s)

v.

Civil Action No.

Luke John Flint, a/k/a "coronavaccine.center";
 "coronavaccine.today"; "coronatesting.site";
 "coronatesting.center"; "coronavaccine.shop";
 "coronavaccine.club"; and "covid19vaccine.center"

Defendant(s)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Luke John Flint
 2839 Brownsboro Road
 Louisville, KY 40202

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Nicole S. Elver
 William F. Campbell
 Assistant United States Attorneys
 717 West Broadway
 Louisville, KY 40202

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE***(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))***

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____, a person of suitable age and discretion who resides there,
 on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*:

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ 0.00.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: